

Court No. - 3

Case :- WRIT - C No. - 22210 of 2022

Petitioner :- Babu Lal

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Pankaj Sharma, Ramesh Kumar Singh

Counsel for Respondent :- C.S.C., Sunil Kumar Dubey

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner and the learned standing counsel.

The only relief sought by the petitioner is that a direction may be issued to the respondents to permit the petitioner to pay the dues in instalments.

In our view the petitioner has a remedy under Clause 6.14 of the U.P. Electricity Supply Code 2005.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed** of giving liberty to the petitioner to file a representation before the respondent no.3 for payment of the dues in instalments in terms of para 6.14 of the U.P. Electricity Supply Code 2005.

In the event such an application is made within three weeks from today alongwith a certified copy of this order, then the respondent no.3 shall consider the application/representation of the petitioner and take appropriate decision in accordance with law, within next two weeks.

Order Date :- 11.8.2022/vkg